

TENTATIVE RULING

Date: 7/21/26

No. 25CV463446 (Santa Clara County)

Set For: 7/24/26

WASHELESKI v. CITY OF SANTA CLARA, et al.

**PLAINTIFF’S RENEWED MOTION FOR APPOINTMENT OF COUNSEL
BASED ON DISABILITY**

**(UNOPPOSED) DEFENDANT JUDGE BROOKE BLECHER’S DEMURRER TO
WRIT**

**(UNOPPOSED) DEFENDANT CITY OF SANTA CLARA’S DEMURRER TO
WRIT**

**(UNOPPOSED) DEFENDANT CITY OF CAMPBELL’S MOTION FOR
JUDGMENT ON THE PLEADINGS**

The renewed motion for appointment of counsel is denied.

The unopposed demurrers are sustained without leave to amend and the unopposed motion for judgment on the pleadings is granted without leave to amend. Plaintiff’s writ and first amended complaint are dismissed with prejudice. Defendants shall submit forms of judgment for signature.

I. PLAINTIFF’S RENEWED MOTION FOR APPOINTMENT OF COUNSEL

Self-represented plaintiff Pawl Washeleski (“plaintiff”) has sued several public entities for failure to perform their ministerial duties, comply with subpoenas, process police reports, and produce public records. He brings a renewed motion for an order appointing counsel for him based on his disability as an accommodation. His prior motion was denied by the Court on February 2, 2026.

No timely opposition was filed, likely because plaintiff failed to serve his motion.

First, plaintiff has not cited any authority authorizing or requiring appointment of counsel in this civil action. (*Hunt v. Hackett* (1973) 36 Cal.App.3d 134, 138 [“There is no California statute or case law authorizing a trial court to furnish counsel at public expense in [a civil] case, or requiring a trial court to appoint counsel without compensation in such a case”]; *Iraheta v. Superior Court* (1999) 70 Cal.App.4th 1500, 1503 [“Generally... the right to counsel has been recognized to exist only where the litigant may lose his physical liberty if he loses the litigation”].) The cases cited by plaintiff do not require or even suggest that this Court must appoint counsel as a disability accommodation in civil cases. (See *Tennessee v. Lane* (2004) 541

U.S. 509, 533 [state’s claim of sovereign immunity denied where ADA required it to reasonably accommodate disabled persons to provide fundamental right of access; but case did not discuss appointment of counsel in civil case as reasonable accommodation]; *McCoy v. Court of Appeals, Dist. 1* (1988) 486 U.S. 429 [counsel appointed in criminal appeal]; *Goldberg v. Kelly* (1970) 397 U.S. 254 [due process protections for recipients of welfare benefits].)

Finally, plaintiff’s pleadings merely conclude that he is disabled, but do not provide a “statement of the medical condition that necessitates the accommodation.” (Cal. Rules of Court, rule 1.100(c)(2).) Plaintiff’s declaration in support of the renewed motion states he has difficulty responding in real time during hearings when multiple issues are raised, and has difficulty tracking and responding to shifting deadlines and procedural requirements. These issues are not evidence of any disability and they fail to show that they “necessitate[] the accommodation.” (Ibid.) Thus, plaintiff fails to satisfy the requirements for the requested accommodation. (Cal. Rules of Court, rule 1.100(f)(1).)

II. JUDGE BLECHER’S DEMURRER TO WRIT

Plaintiff’s writ, filed April 16, 2025, fails to mention Judge Blecher at all or any facts related to her. Plaintiff’s initial complaint for damages, filed April 24, 2025, names Judge Blecher in the caption and alleges she ignored multiple sworn affidavits, notices, and evidence. Plaintiff’s first amended complaint, filed May 6, 2025, identifies Judge Blecher in the caption but actually seeks to name two different defendants.

“It is well established judges are granted immunity from civil suit in the exercise of their judicial functions. This rule applies even where the judge’s acts are alleged to have been done maliciously and corruptly. The rule is based on a general principle of the highest importance to the proper administration of justice that a judicial officer, in exercising the authority vested in him, shall be free to act upon his own convictions, without apprehension of personal consequence to himself.” (*Frost v. Geernaert* (1988) 200 Cal.App.3d 1104, 1107 [cit. omitted].) Judicial immunity “applies to all judicial determinations, including those rendered in excess of the judge’s jurisdiction, no matter how erroneous or even malicious or corrupt they may be.” (*Howard v. Drapkin* (1990) 222 Cal.App.3d 843, 851, cit. omitted.)

Plaintiff alleges Judge Blecher “acted with open indifference, empowered wrongful actors, and failed to provide the most basic protections to children and a law-abiding father seeking due process.” (Complaint, ¶ 3.) All conduct alleged by Judge Blecher is related to her presiding in a family law case involving plaintiff. (Complaint at ¶¶ 7-11 – allegedly refusing to consider certain evidence, ruling against plaintiff, abandoning her duties to stop abuse, engaging in cruelty and punishing plaintiff.) These claims fall squarely within the scope of judicial immunity.

Further, plaintiff failed to properly present any government claim against Judge Blecher with the Judicial Council of California and failed to allege compliance with the Government

Claims Act. (*State of California v. Superior Court* (2004) 32 Cal.4th 1234, 1243.) “Thus, failure to timely present a claim for money or damages to a public entity bars a plaintiff from filing a lawsuit against that entity.” (*Id.* at p. 1239.) Presentation of a written claim and action on or rejection of the claim are conditions precedent to suit. (Gov. Code §§ 945.4, 950.6; *Shirk v. Vista Unified Sch. Dist.* (2007) 42 Cal.4th 201, 208-09.)

Despite proper service on plaintiff, no opposition was filed.

Based on the claims against Judge Blecher there is no reasonable possibility that plaintiff’s allegations can be cured by amendment. (*Kong v. City of Hawaiian Gardens Redevelopment Agency* (2002) 108 Cal.App.4th 1028, 1037.) Therefore, the demurrer is sustained without leave to amend and plaintiff’s writ, complaint and first amended complaint as to Judge Blecher are dismissed with prejudice.

III. CITY OF SANTA CLARA’S DEMURRER TO WRIT

Much like the Judge Blecher allegations, plaintiff’s initial complaint and first amended complaint name the City of Santa Clara (“Santa Clara”) in the caption but fail to include any factual allegations against it. The only pleading which appears to describe Santa Clara is plaintiff’s petition for writ of mandate. There he describes making requests to Santa Clara’s police department “to take reports relating to perjury, interference with court-ordered visitation, and violations of civil rights,” that it “refused to take reports, document events, or preserve evidence relevant to Petitioner’s federal and family court cases,” it “denied requests for records” and “failed to comply with a valid federal subpoena,” and its officers allegedly discriminated against plaintiff based on disability. (Writ §§ IV.1-4.) He seeks orders directing Santa Clara to comply with subpoenas, produce records, respond to records requests, take police reports of civil rights violations and cease ADA violations and ensure equal access. (Writ § VI.)

To the extent plaintiff seeks damages from Santa Clara, his claims are barred due to his failure to present any timely claim for damages. (See ante.) Further, plaintiff also does not allege facts sufficient to state a claim for relief for traditional mandate. Under Code of Civil Procedure section 1085, a traditional writ of mandate may be issued to compel the performance of a legal (usually ministerial) duty, where a petitioner has a clear, present, and beneficial right to performance of that duty. (Code Civ. Proc., § 1085.) Plaintiff’s pleadings are wholly conclusory and fail to allege facts supporting any duty by Santa Clara in taking reports, producing responsive records, or failing to provide equal access to plaintiff. To the extent Santa Clara refused to take reports or preserve evidence, it is immune from suit. (Government Code §§ 818.2, 821.)

Despite proper service on plaintiff, no opposition was filed.

Based on plaintiff's failure to present any government claim and the immunities afforded to Santa Clara, the Court finds the allegations cannot be cured by amendment and sustains its demurrer without leave to amend.

IV. CITY OF CAMPBELL'S MOTION FOR JUDGMENT ON THE PLEADINGS

The City of Campbell's ("Campbell") arguments are substantially similar to Santa Clara's – it argues plaintiff fails to demonstrate compliance with the Government Claims Act, fails to provide statutory basis pursuant Government Code § 815, and fails to allege sufficient facts to state a valid cause of action against it.

Per the Government Claims Act, a party with a claim for damages against a public entity must first present the claim directly to that entity. The party may file a lawsuit only if the public entity denies or rejects the claim. (Gov. Code §§ 905, 945.4.) A party must present a claim based on "a cause of action for death or for injury to person..." within six months. (Gov. Code, §§ 911.4, 911.2, subd. (a).) A party must thereafter file suit within six months after the date on which the public entity gives notice of its action on the claim. (Gov. Code, § 945.6, subd. (a)(1).) While plaintiff presented a claim to Campbell on September 19, 2024, it was rejected on October 11, 2024¹ with a specific warning that a suit must be filed within six months to be timely. That deadline was April 11, 2025, and plaintiff's writ and initial complaint were both filed after. Therefore, plaintiff's suit against Campbell is untimely.

Further, the first amended complaint (the operative complaint) is void of any facts of liability by Campbell (or Ms. Stephanie Ferrelli, whom plaintiff characterizes as its attorney). First, his attempt at incorporating all prior allegations from his previous complaint fails to satisfy his pleading burden. (Code Civ. Proc., § 425.10, subd. (a)(1) [A complaint must contain "[a] statement of the facts constituting the cause of action, in ordinary and concise language."]) Plaintiff's first amended complaint fails to state any facts at all; it merely references facts from a previous pleading and contains legal conclusions. This is insufficient. Second, he references "newly documented harms" but fails to incorporate any supporting facts of such ("This amendment is necessary to reflect newly documented harms and ongoing civil rights violations resulting from failures by the City of Campbell and Attorney Stephanie Finelli was she served to protect Plaintiff's constitutionally protected rights, particularly in relation to access to his children and enforcement of legal process."). This further fails to delineate any public entity tort liability by statute as required, any public employee liability, and fails to meet any fact pleading standard. (Gov. Code § 815; *Schmid v. City and County of San Francisco* (2021) 60 Cal.App.5th 470, 481 [bare conclusions devoid of any supporting facts are insufficient to withstand demurrer or judgment on the pleadings].)

¹ The Court takes judicial notice of Campbell's claim rejection date, October 11, 2024. (Evidence Code § 452, subd. (c); *Ludwig v. Superior Court* (1995) 37 Cal.App.4th 8, 14.)

Despite proper service on plaintiff, no opposition was filed.

The burden is on the plaintiff to demonstrate that he is able to cure his pleading by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) Here, plaintiff has failed to do so and therefore, based on that failure as well as the untimeliness of his complaint, the Court grants the motion for judgment on the pleadings and dismisses plaintiff's first amended complaint and writ.